My responses to your letter are laid out below.

1. Failure to Comply with Equality Act 2010 Obligations

Your response confirms that HMRC did not fully meet its obligations under the Equality Act 2010 and the HMRC Charter to make reasonable adjustments and to treat customers fairly.

These duties were especially important given HMRC's awareness of my long-term physical health condition and the impact on my mental wellbeing. The ongoing lack of continuity, multiple changes of personnel without handover, and failure to follow agreed communication methods demonstrate repeated failures to implement those duties effectively despite my repeatedly acting in good faith to avoid continued issues with HMRC.

2. Maladministration and Charter Failings

The admitted breakdowns in communication, loss of case ownership, and repeated misdirection of correspondence amount to maladministration and breaches of HMRC's own Charter commitments.

The pattern of repeated error across both companies has caused prolonged disruption and significant detriment for the companies and me personally, particularly during a period when HMRC had formally recognised the need for additional support.

3. Consequences and Impact

The cumulative effect of these failures has been severe with tangible and ongoing effects: deterioration in my health, unnecessary distress, and measurable interference with both businesses, including delays to legitimate R&D Tax Credit claims and increased administrative costs.

HMRC's own published guidance (Complaints and Remedy Guidance (CRG6075)) confirms that while consolatory payments for worry or distress are normally made within a general range, higher sums are appropriate where the impact has been serious, prolonged, or compounded by repeated administrative failings; the guidance explicitly allows payments outside the usual range when justified by the degree and duration of harm (see also CRG6050).

The Adjudicator's Office Annual Report 2025 shows that redress frequently extends beyond basic "distress" payments to include reimbursement of financial loss, additional payments for poor complaints handling, and the giving up of liability, resulting in materially higher overall awards in serious cases.

In addition, the Parliamentary and Health Service Ombudsman's Financial Remedy and Financial Remedy Guidance confirm that sustained injustice and significant adverse impact

can warrant awards above routine levels for non-financial loss, alongside full reimbursement of any proven financial loss.

The proposed payment cannot reasonably be considered proportionate given the impact of HMRC's repeated failings over time, and the harm that has resulted. HMRC's own redress framework and past Adjudicator decisions recognise that where maladministration causes sustained harm or distress, substantially higher consolatory payments are warranted.

4. Requested Actions

Accordingly, I request that HMRC's Tier 2 Complaints Service:

1. Conduct a full review of ***all points*** included in the initial complaint and this letter, including those prior to 2023, in light of the information HMRC received and recorded twice during 2022.
2. Reassess the level of financial redress in light of HMRC's own guidance and the acknowledged failures under the Equality Act 2010 and HMRC Charter.
3. Confirm that, if unresolved, both cases will be referred to the Adjudicator's Office for independent investigation.
4. Provide assurance that corrective measures, particularly around reasonable adjustments and case continuity, have now been implemented within the Extra Support Team and advise what those corrective measures are.

In addition, I also note that the following remain outstanding:

1. Contact from the Extra Support Team, which has not been received to my knowledge.
2. Contact from the R&D Unit Compliance Complaints Unit, which has not been received.
3. The FOI information requested in my original complaint.

While these complaints concern separate legal entities and me personally, I ask that HMRC review them together for efficiency but record outcomes individually as appropriate.

I am happy to provide detailed evidence of the health and financial impact if that assists your review.

Please confirm receipt of this letter and advise when I can expect the Tier 2 review outcome.

Yours sincerely,

Mark Howells
mdhowells79@gmail.com; mark@konnektis.com; mark@leconfieldstrategic.com
07513 716368

HM Revenue & Customs

HM Revenue and Customs
Business and Specialist Tax
BX9 1AB

Mr Mark Howells
South Farm
Newton Morrell
North Yorkshire
DL10 6HQ

Phone: 0300 322 9117
Monday to Thursday 8.30am to 5.00pm
Friday 8.30am to 4.30pm

Web: www.gov.uk

Date 4 November 2025
Our Ref CE/2649010/2025

Dear Mr Howells

Your complaint response

Thank you for your letter dated 12 October 2025 to the Chief Executive about Leconfield Strategic Solutions Limited. I have been asked, as Complaints Investigation Manager for Business and Specialist Taxes to reply to you.

You will receive a separate reply regarding your complaint for Konnektis Communications Limited.

I am sorry for the difficulties you have experienced with our Extra Support Team Debt Management (ESTDM). We appreciate you bringing these matters to our attention and welcome the opportunity to respond to the concerns raised.

We have received your complaint from your MP dated 14 October 2025. We will write to them separately to advise that we have responded to you directly. This ensures you get a response as soon as possible.

My role

I am a Complaint Investigation Manager. I have carried out an impartial investigation into your complaint. I have considered what you have told us and the concerns you have raised.

I have used the information we have on your records to help me investigate what happened. That information included earlier correspondence.

I have also considered your personal situation when making my decision.

My investigation

If you need extra support, for example if you have a disability, a mental health condition, or do not speak English/Welsh, go to www.gov.uk and search for 'get help from HMRC'.
Text Relay service prefix number – 18001

We sincerely regret the difficulties you have encountered and acknowledge that the service provided fell short of the standards expected under the HMRC Charter and the Equality Act 2010. Please find below our response to each of the points raised:

Equality Act 2010 and HMRC Charter Compliance
We recognise that we have obligations under the Equality Act 2010 and the HMRC Charter to make reasonable adjustments and treat customers fairly. We accept that we did not fully meet these in your case. We are implementing additional training for ESTDM to ensure compliance with these requirements and prevent recurrence.

Impact on Health and Wellbeing
We acknowledge the significant impact our failures have had on your mental health and wellbeing, as described in your complaint. We deeply regret this and will ensure that we handle future interactions with sensitivity. We can also provide signposting to external support services if required.

Extra Support Team Failures
We confirm that the breakdown in continuity, lack of handover, and failure to use agreed communication channels were unacceptable

1.Failure in Extra Support Team Processes & Lack of Communication
While it is not standard practice to assign a Single Point of Contact (SPOC) for every customer due to the volume of cases we manage, we do allocate one in specific circumstances or upon request. We did assign a SPOC to you previously; however, due to the unavailability of Mr Burnell from January 2025, the case should have been handed over to another team member. We apologise that this did not occur and acknowledge the breakdown in communication. We are reviewing our handover procedures to prevent recurrence.

Please note, the contact number to reach ESTDM is 0300 322 7026, which the team issue on all correspondence.

2.Current Case Ownership
We have now reassigned your case to Ellis Thomas, who will act as your new SPOC. Mr Thomas will move the case to ESTDM and will contact you this week (week commencing 3 November 2025) to introduce himself and discuss next steps.

3.Correspondence Address
We have reviewed your records and found that the VAT registered office address was previously listed for correspondence. We have now updated the relevant systems to reflect your home address, and we will endeavour to ensure all future correspondence is issued accordingly.

4.Apology & Steps to Prevent Recurrence
We acknowledge the shortcomings in your experience and offer our sincere apologies. ESTDM has implemented a new process to ensure that we proactively pick up cases in similar circumstances, and we maintain that continuity of support.

5.Mr Burnell's Absence & Lack of Handover
While we cannot disclose personal details regarding Mr Burnell's absence, we accept that your case should have been handed over. We also recognise that we should have provided you with ESTDM's contact number in addition to Mr Burnell's direct line. We apologise for this oversight and are taking steps to ensure better continuity in future.

6.SPOC Denial by Mr Khan
Mr Khan was relatively new to the team at the time you spoke with him and he may not have been aware that assigning a SPOC is a reasonable and possible request. We have now ensured that we fully brief all team members on this option to prevent similar misunderstandings.

7.2022 Correspondence & Appeals
The matters raised from 2022 predate the involvement of ESTDM, and we are therefore unable to comment directly. However, if you wish to pursue this further, we can refer the matter to the appropriate department for review.

8.Use of Mobile Number
If your mobile number is on record, we should have used it for contact. We will use the number you have provided on his letter to make future contact. We will ensure we correctly record this for future communications.

9.Letter Sent to Incorrect Address
The letter from ESTDM was issued to the address on record at the time. We regret that this was not your preferred address and acknowledge that further follow-up should have occurred. We are reviewing our procedures to improve how we manage address updates and follow-up communications.
We are committed to learning from this and improving our service. Please accept our apologies once again for the inconvenience caused to yourself.

R&D Tax Claims
We acknowledge your concerns regarding the 2020 and 2021 R&D Tax Claims for Konnektis Communications Limited. While these matters predate ESTDM involvement, we have referred them to the Corporation Tax R&D Unit Compliance Complaints Unit for urgent review. You will receive a separate update/reply to this letter.

Formal Apology and Preventative Measures
We apologise unreservedly for the failures in your case. To prevent recurrence, HMRC has:

- Introduced enhanced training on reasonable adjustments and mental health awareness.
- Implemented stricter monitoring of ESTDM case continuity.
- Updated guidance to ensure SPOC allocation is clear and consistent.

Subject Access Request
We acknowledge your request for disclosure under the Freedom of Information (FOI) Act and Data Protection Act. We process FOI requests separately, and Mr Howells will receive confirmation within statutory timelines.

Financial Redress
You have asked for redress regarding this matter.
We will make a payment of £250 due to our poor handling of Mr Howells case with ESTDM. We will also make a further payment of £250 for additional worry and distress this has caused to Mr Howells.

As these payments are issued using Bacs, we need to make an electronic payment directly to your bank account. Electronic payments are quicker and more secure. We need the:

- bank sort code
- bank account number
- account name

For security reasons, please **do not** email these details. You can write to us at HM Revenue and Customs, Business and Specialist Tax Complaints, BX9 1AB with this information. Alternatively, you can call us on 0300 322 9117.

Next steps

We have reviewed your complaint under the first tier of our two-tier complaints process. If you feel that we have not dealt with your complaint fully or correctly, you can ask us to look at it again. You should go to www.gov.uk and search for 'Complain about HMRC' where you can find more information about our complaint process. You can write to us at Tier 2

Complaints Service, HM Revenue and Customs, BX9 1AB, quoting reference CHART customer ID 0244870.

Data Protection

For further details about how we collect, use, protect and secure your personal information, please go to GOV.UK and search 'HMRC Privacy notice'.

Yours sincerely

Theresa Barlow
Complaints Investigation Manager

To find out about the service and standard of behaviour you can expect from us, go to www.gov.uk and search 'HMRC Charter'.